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At approximately 2:26 p.m. on February 15, 2011, [REDACTED] left his school, [REDACTED] on [REDACTED] in Brooklyn, and walked towards the nearest R-train station, intending to attend a [REDACTED] at a Family Court office on Jay Street. [REDACTED] who was wearing a white hat, white shoes, and a coat during the incident, had been placed on probation after an unrelated incident. When [REDACTED] reached [REDACTED], he noticed two of his classmates, [REDACTED] and [REDACTED]. [REDACTED] instructed [REDACTED] to go into an alley, approximately fifty feet away, in the vicinity of [REDACTED]. [REDACTED] was unable to provide physical descriptions for these individuals, but did recall that [REDACTED] had worn a hat, and that both [REDACTED] and [REDACTED] had worn boots and jackets during the incident. While [REDACTED] had not had trouble with [REDACTED] and [REDACTED] in the past, he later learned a rumor existed that he had struck [REDACTED] sister, which led to the attack. Upon entering the alley, [REDACTED] and [REDACTED] began assaulting [REDACTED] by punching and kicking him, and stomping his face. As a result, [REDACTED] suffered bruising. The pair, which knocked him to the ground, did not strike [REDACTED] in the back. The assault lasted approximately four minutes, and ended when a woman, who is unknown to [REDACTED] intervened and said, "What are you guys doing? Get off him!" At that point, [REDACTED] and [REDACTED] scattered, after which the woman picked [REDACTED] up from the ground and walked him out of the alley. [REDACTED] believes that this woman is a parent whose children attend the elementary school which is located across the street from the incident location, but he is not certain that this is the case. The woman then went into that elementary school—the exact name of which [REDACTED] did not know—and brought out a school safety agent (white female, short, black hair, late 30's, average build, in uniform).

As the unknown woman and the school safety agent were approaching [REDACTED] two uniformed officers, PO1 (white male, 6'0" tall, thin build, late 40's to early 50's, light brown hair) and PO2 (Hispanic male, 5'10" tall, muscular build), arrived at the location in a marked vehicle. The school safety agent asked [REDACTED] if he was okay, while another unknown passerby gave [REDACTED] some paper towels with which to clean himself. [REDACTED] who was quite angry, answered the school safety officer by "screaming random things." [REDACTED] did not recall the nature of the "random things" he had screamed. At that point, PO1 approached [REDACTED] while PO2 went over to speak with the school safety agent. PO1 asked [REDACTED] a number of questions, including if he wanted to file a police report, and if he knew his assailants; [REDACTED] who felt "dizzy" and "weird" following the attack, indicated that he wanted to leave the scene and speak with his father. When asked if he had heard or said anything else, [REDACTED] stated that he had "blacked out," and did not hear anything. He then clarified that he had not lost consciousness, but did "[lose his] train of thought," and lowered his head for approximately ten seconds.

Moments later, he raised his head again, after which PO1 pushed him into the passenger-side of a small, silver SUV. [REDACTED] did not recall any other details of this vehicle. PO1 pushed [REDACTED] with such force that this action caused a dent in the middle of the vehicle—which was approximately two feet behind him—and caused [REDACTED] to "bounce back" towards PO1. While his entire back made contact, it was his lower back which made the most contact. PO1 then smacked [REDACTED] once on the right side of the face with his left hand and screamed, "Don't disrespect me!" At that point, [REDACTED] looked at PO1's badge and observed his last name ("Smith"). [REDACTED] responded to PO1's actions by saying that he simply wanted to speak with his father, and that he wanted to leave the scene because he was on his way to a probation hearing. PO1 then asked to see [REDACTED] probation card, a document which [REDACTED] provided. Thereafter, the apparent owner of the vehicle, another unknown woman who had children in tow, said to PO1, "[Officer], I know this is none of my business, but you just pushed that boy into my car." PO1,

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who did not respond to this person, then stood at the scene for a couple of minutes before leaving with PO2. As far as [REDACTED] understands, PO2 only spoke with the school safety agent, and he did not have an interaction with PO2.

After PO1 and PO2 left the incident location, the school safety agent escorted [REDACTED] across the street to the elementary school, where [REDACTED] cleaned himself. Approximately five minutes later, an ambulance appeared, and EMS personnel examined [REDACTED]. The EMT informed [REDACTED] that his nose had been broken, after which [REDACTED] attempted to snap it back into place. When the EMT told [REDACTED] that he had to accompany them to a hospital, he declined the proposition, saying that he wanted his father, [REDACTED], to pick him up from the school. EMS personnel told [REDACTED] that they would not leave him until [REDACTED] arrived to pick him up. Approximately ten minutes later, [REDACTED] arrived at the school, after which the school safety agent said, “[REDACTED] tell him.” [REDACTED] then said, “Tell me what?” When [REDACTED] declined to explain what had happened, the school safety agent said, “Officer Smith just smacked your son across the face and pushed him into the car.” At that point, [REDACTED] said, “OK, we’re going to the precinct.” Upon arriving at the 68th Precinct stationhouse, [REDACTED] noticed PO1 and pointed him out to his father and approached PO1. [REDACTED] then said, “I don’t want to talk to you because you just smacked my son in the face—go get your sergeant.” PO1 replied, “OK,” and walked away to summon his supervisor. [REDACTED] then spoke with a sergeant—whose name [REDACTED] did not know—and filed a complaint against PO1. [REDACTED] was inside the precinct stationhouse for ten minutes, but then decided to wait in his father’s car. [REDACTED] left the stationhouse approximately ten minutes later. [REDACTED] and [REDACTED] then went to [REDACTED] Hospital, where a CT scan was performed on [REDACTED]. [REDACTED] was informed that his nose had not been broken. As a result of being pushed into the vehicle, [REDACTED] continued to feel pain—as of the date of the CCRB interview—in his lower back.

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At approximately 2:30 p.m. on February 15, 2011, [REDACTED] a School Safety Agent, was inside [REDACTED], the school to which she was assigned. There were at least one-hundred parents and students outside of the school, as class had been let out for the day. The school crossing guard, known only to [REDACTED] as [REDACTED] was also outside of the school. At this time, a parent named [REDACTED] entered the school and informed [REDACTED] that a young man was being beaten nearby. [REDACTED] exited the school—her partner, [REDACTED], remained inside—at which time she observed [REDACTED] lying on the ground while in the fetal position, in the vicinity of [REDACTED]. [REDACTED] observed individuals running from the scene, but is unaware if they were the perpetrators of the assault. [REDACTED] approached [REDACTED] introduced herself, and asked him if he needed medical attention. By this point, [REDACTED] had determined that [REDACTED] had been “[beaten] up badly,” and that he had sustained a broken nose as well as contusions to the left side of the face. [REDACTED] then sat up, and [REDACTED] helped him to his feet. [REDACTED] said that he needed to leave in order to make a probation meeting, and requested a mirror. [REDACTED] told [REDACTED] that she didn’t have a mirror, and that considering his condition, she would not let him leave the scene. [REDACTED] who was very angry, said that the fight was “over a girl.” As [REDACTED] was speaking with [REDACTED] an RMP containing two uniformed police officers, PO1 (white male, 5’6” tall, thin build, brown to dirty blonde hair, 25-35 years of age, operator of RMP) and PO2 (Asian male, 5’1” tall, average build, dark brown or black hair, mid-twenties to early thirties), appeared at the location, as one of the parents had called 911.

PO1 and PO2 exited their patrol vehicle, after which they approached [REDACTED]. In terms of positioning, PO1 was standing to the right of [REDACTED] PO2 stood to the left of [REDACTED] and [REDACTED] stood directly in front of him. At this point, [REDACTED] informed PO2 that three or four individuals had beaten [REDACTED] PO2 did not do anything during the incident, while PO1 did not allow [REDACTED] to explain to him what had happened with [REDACTED] and subsequently requested to see [REDACTED] identification. Nothing was ever said between [REDACTED] and PO1. [REDACTED] and [REDACTED] then leaned over to retrieve [REDACTED] book bag, which was lying on the ground a few feet away. While [REDACTED] was still bent over, PO1 lifted him by the front of his jacket or outer garment, and pushed him in the chest into a grey or gold minivan—causing a dent in the vehicle—from which [REDACTED] was approximately one foot away. The dent was located on the rear passenger door of that vehicle, at waist level. PO1 then pressed his hand against [REDACTED] face, causing [REDACTED] head to strike the minivan. When asked directly if PO1 had smacked [REDACTED] [REDACTED] responded in the affirmative. [REDACTED] subsequently clarified that PO1’s action against [REDACTED] was “an open hand push to the face.” In response, [REDACTED] said, “Oh my God, could you believe that [PO1] did this to me? I just got beat up! I’m the victim!” [REDACTED] who attempted to leave the scene, then said to PO1, “I just wanted to get you my ID.” PO1 said something to [REDACTED] but [REDACTED] did not hear what PO1 had said to him. At no point did [REDACTED] present his identification to PO1.

Out of concern for [REDACTED] welfare, [REDACTED] extended her arms between PO1 and [REDACTED] and then led [REDACTED] inside [REDACTED]. The interaction between [REDACTED] and PO1 lasted approximately seven minutes, and neither PO1 nor PO2 said or did anything as [REDACTED] led [REDACTED] away. While he was inside the school, [REDACTED] went to the bathroom and cleaned himself up. At some point, [REDACTED] told [REDACTED] that he needed to see his [REDACTED]. Sometime later, [REDACTED] sat [REDACTED] down on a chair, after which EMS personnel appeared. However, [REDACTED] refused medical attention. Because of his age, EMS personnel were unwilling to let [REDACTED] leave the school without parental supervision.

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Approximately fifteen minutes later, [REDACTED] father arrived and told [REDACTED] that he and his son would be going to the 68th Precinct. At some point, [REDACTED] informed her supervisor of the incident, who in turn told her not to write about it in her memo book, as the incident took place “off-site,” away from [REDACTED]
[REDACTED]

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On February 15, 2011, PO Thomas Smith worked from 7:05 a.m. until 3:40 p.m. PO Smith worked in uniform and was assigned to patrol sectors D and G alongside PO Ahmed Shohatee. PO Smith was further assigned to RMP # [REDACTED] a marked vehicle. PO Smith was the recorder in the RMP. PO Smith had a memo book entry regarding the incident, which he read verbatim into the record.

At approximately 2:27 p.m. on February 15, 2011, PO Smith and his partner, PO Ahmed Shohatee, received a 10-34 call over the air regarding an assault in progress in the northwest corner of [REDACTED] [REDACTED] in Brooklyn. PO Smith did not know who had reported the assault in progress, or what time he eventually arrived at the stated location. Upon arriving at the location, PO Smith observed [REDACTED] who while “disheveled” and had clearly been in an altercation, did not appear to be injured. PO Smith did not recall [REDACTED] bleeding or having sustained black eyes. [REDACTED] was standing on his own accord. When asked if there was a vehicle immediately behind [REDACTED] PO Smith stated that he “assume[d]” this was the case; however, he did not specifically recall a silver SUV at the location. PO Smith did not observe a vehicle behind [REDACTED] having sustained damage. In total, there were only four individuals present for the incident: a School Safety Agent (white female, 5’4” tall) or School Crossing Guard; [REDACTED] and Officers Smith and Shohatee; no other officers, supervisory or otherwise, would respond to the location.

[REDACTED] whom PO Smith observed for under a minute before approaching him, displayed “belligerent” behavior: he yelled, cursed, and screamed. PO Smith did not recall the specific phrases or curses that [REDACTED] said. [REDACTED] also “[got] in the face” of a School Safety Agent and “[berated]” her in what was “a heated exchange.” The School Safety Agent, with whom PO Smith did not have a conversation, was not speaking in a loud tone of voice and had also attempted to learn more information about the assault. When asked to describe how [REDACTED] “got in the face” of the SSA, PO Smith clarified that [REDACTED] was in a “verbal altercation” with her, saying that he did not need her assistance, that he would take care of the situation on his own, and that he wanted her to get away from him. Given [REDACTED] “belligerent” and “berating” behavior, PO Smith subsequently instructed him to calm down, grabbed him by the jacket, and moved him away from the School Safety Agent. When asked by Mr. Louis Albert, PBA attorney, if PO Smith thought that the encounter between [REDACTED] and the School Safety Agent would “escalate,” PO Smith answered in the affirmative. Prior to being separated, [REDACTED] was approximately one to two feet away from the School Safety Agent. PO Smith did not recall making any other kind of physical contact with [REDACTED] who was speaking in a loud tone of voice—or otherwise “getting real physical” with him. PO Smith did not remember either pushing [REDACTED] or smacking him across the face. PO Smith also did not recall if a civilian had approached him and said something to the effect of, “Excuse me, officer, but you just pushed that boy into my car.”

PO Smith then tried to get detailed information from [REDACTED] regarding the assault, but he was likewise uncooperative; [REDACTED] who seemed to understand PO Smith’s line of questioning, would not tell PO Smith exactly what had happened, and would not indicate what his assailants looked like and in what direction they had gone. However, PO Smith did not tell [REDACTED] not to “disrespect” him. [REDACTED] said that he did not need the assistance of police officers, and that he would find his assailants and, as he explained to the School Safety Agent, that he would take care of the situation himself. PO Smith, who had asked [REDACTED] for more information “anywhere from five to ten times.” PO Smith did not recall where PO Shohatee was positioned as he spoke with [REDACTED] PO Smith subsequently deemed [REDACTED] to be

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“uncooperative,” and left the location with PO Shohatee, who did not interact with [REDACTED] PO Smith, who was at the location for approximately thirty minutes, was unaware if PO Shohatee spoke either with the School Safety Agent or the School Crossing Guard, and did not observe him use physical force against [REDACTED] PO Smith did not know what became of [REDACTED] once when he left the location, as [REDACTED] by that point, was still at [REDACTED] [REDACTED] he did not know if the School Safety Agent had led him away. Ultimately, there was no report prepared in connection with the assault of [REDACTED]

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On February 15, 2011, PO Ahmed Shohatee worked in uniform from 7:05 a.m. until 3:40 p.m. Partnered with PO Thomas Smith, PO Shohatee was assigned to patrol sectors D and G in RMP # [REDACTED] a marked vehicle. PO Shohatee had memo book entries regarding the incident, which he read verbatim into the record.

At approximately 2:27 p.m. on February 15, 2011, PO Shohatee and his partner, PO Thomas Smith, received a call of a male being assaulted at [REDACTED] PO Shohatee believed that the call came from an anonymous individual. Upon arriving at the location, PO Shohatee observed a young man, [REDACTED] facing westbound on [REDACTED] with a School Safety Agent (Hispanic female, short, heavysset, black hair, and in her 40's). There were a number of individuals in the area, as parents were picking up their children from the nearby school, but PO Shohatee could not provide an approximate number. No officers other than Shohatee and Smith responded to the assault call. PO Shohatee observed that [REDACTED] had a ripped shirt, scratches on his neck, and "a couple of knots on his head," but did not recall having seen any blood or bruises. There was a black Jeep parked him which had a small dent on the rear passenger door. PO Shohatee did not know when the vehicle had sustained such damage.

[REDACTED] was going "back and forth" with the School Safety Agent, screaming and cursing at her. PO Shohatee recalled [REDACTED] saying, "Leave me the fuck alone," and it appeared to PO Shohatee that [REDACTED] was about to "go against" the School Safety Agent. Given this behavior, PO Smith separated [REDACTED] from the School Safety Agent with his right arm, in a sweeping motion. However, PO Shohatee did not see PO Smith push [REDACTED] against a vehicle, and did not see PO Smith smacking [REDACTED] across the face, either. PO Shohatee did not observe PO Smith using any kind of force against [REDACTED] indeed, he did not observe PO Smith making any kind of physical contact with [REDACTED] PO Shohatee also did not hear PO Smith say something to the effect of, "Don't disrespect me." Further, PO Shohatee did not observe a civilian approach PO Smith and subsequently say, "Officer, you just pushed that boy into my car."

PO Shohatee then tried to get more information from the School Safety Agent, who told PO Shohatee that [REDACTED] had been "jumped" by a group of youths and tried to ascertain if he wanted to file a complaint. After PO Shohatee spoke with the School Safety Agent, [REDACTED] attempted to walk away from PO Smith and the location. However, PO Shohatee approached [REDACTED] and asked him if he wanted to file a report regarding the assault, but [REDACTED] declined to do so, saying that he would handle the situation "[his] way." [REDACTED] also said, "You fucking pigs—I do not need you." PO Smith did not speak with the School Safety Agent, and he stood to PO Shohatee's right as the latter spoke with [REDACTED] PO Shohatee, who grew up in the neighborhood where the incident took place, told [REDACTED] that he must have known the youths who perpetrated the assault. While [REDACTED] who was "very rude and uncooperative" with PO Shohatee, acknowledged knowing his assailants, nonetheless insisted against filing a report. In the meantime, PO Smith spoke with a parent (a white/Hispanic female) who was picking up her child from school—approximately thirty feet away from PO Shohatee—for two to three minutes, but PO Shohatee did not know this person, and did not know what was said between them. The incident, which lasted approximately ten minutes, subsequently ended when the School Safety Agent led [REDACTED] to the nearby school so that she could contact his parents.

Later, at approximately 3:30 p.m., at the 68th Precinct stationhouse—near the end of his tour—PO Shohatee observed [REDACTED] and his father near the area where civilians file complaints; PO Shohatee thought that the elder [REDACTED] was going to file a report on behalf of his son, but did not know if this was indeed what took

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place. PO Shohatee saw that the younger [REDACTED] noticed him while in the stationhouse, but neither of the [REDACTED] men approached PO Shohatee, and he did not have an interaction with them.



Eric Gonzalez
District Attorney

**DISTRICT ATTORNEY
KINGS COUNTY**

350 JAY STREET
BROOKLYN, NY 11201-2908
(718) 250-2000
WWW.BROOKLYNDA.ORG

[INSERT NAME]
Assistant District Attorney

[INSERT DATE]

[INSERT D/C INFO]

Re: [INSERT CASE NAME]
Kings County Dkt./Ind. No. [#####]

In connection with the above-named case, the People voluntarily provide the following information regarding:

MOS NAME: AHMED SHOHATEE

MOS TAX: [REDACTED]

in satisfaction (to the extent applicable) of their constitutional, statutory, and ethical obligations. Further, the People reserve the right to move in limine to preclude reference to this information, or otherwise to object to its use and/or introduction into evidence.

BASED UPON CCRB DOCUMENTS UP TO DATE THROUGH OCTOBER 13, 2020, THE PEOPLE ARE AWARE OF THE FOLLOWING CCRB SUBSTANTIATED AND/OR PENDING ALLEGATIONS AGAINST THIS OFFICER:

Disclosure # 1:

CCRB CASE: 201102151

REPORT DATE: 02/18/2011

[REDACTED]
[REDACTED]
[REDACTED]

Eric Gonzalez
District Attorney
Kings County